



CHAPTER xxxii.

An Act to provide for the vesting in the Breconshire County Council of part of the Swansea Canal and other lands and for the closing of the part of the canal so vested to confer powers on the County Council with respect to that part of the canal and those lands and for other purposes. [12th July 1946.]

WHEREAS by the Act 34 Geo. III. c. 109 the Company of Proprietors of the Swansea Canal Navigation (hereinafter referred to as "the canal company") were incorporated and were empowered to make and maintain a canal from the town of Swansea in the county of Glamorgan into the parish of Ystradgunlais in the county of Brecknock (except a portion thereof in the county of Glamorgan which the Duke of Beaufort his heirs and assigns were authorised to make and maintain):

And whereas the whole of the said canal was long since constructed:

And whereas by the Great Western Railway (Swansea 35 & 36 Vict. Canal) Act 1872 the undertaking of the canal company was c. clii. vested in the Great Western Railway Company:

And whereas it is expedient to transfer to and vest in the county council of the administrative county of Brecknock (hereinafter referred to as "the County Council") a portion of the said canal (which said portion has not been used for traffic during the present century) and other lands in the parish of Ystradgynlais Lower in the rural district of Ystradgynlais in the said county and to provide for the closing of the said portion of the said canal:

And whereas it is expedient to confer upon the County Council with respect to the portion of the canal and the other lands so transferred and vested the powers contained in this Act:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas a plan of the lands which may be acquired compulsorily under the powers of this Act and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands respectively have been deposited with the clerk of the County Council and are in this Act respectively referred to as the deposited plan and the deposited book of reference:

23 & 24 Geo. 5.
c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 so far as applicable to the County Council have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited as the Breconshire County Council Act 1946.

Interpretation. 2. In this Act unless the subject or context otherwise requires—

“ The County Council ” means the county council of the administrative county of Brecknock;

“ The railway company ” means the Great Western Railway Company;

“ The canal ” means the canal authorised by the Act 34 Geo. III. c. 109;

“ The date of vesting ” means the day immediately following the date of the passing of this Act;

“ The vested lands ” means—

(i) so much of the canal and the towpath thereof (including any locks and lock walls) as is numbered 1, 4 and 5 on the deposited plan;

(ii) the accommodation overbridge culvert and approaches which are numbered 1A on the deposited plan;

(iii) so much of the canal bank and overflow channel as is numbered 2 on the deposited plan;

(iv) so much of the river bank and retaining wall as is numbered 3 on the deposited plan;

(v) the public road and the bridge numbered 4 on the deposited plan;

all in the parish of Ystradgynlais Lower in the rural district of Ystradgynlais in the administrative county of Brecknock;

“ The vested portion of the canal ” means so much of the canal as forms part of the vested lands.

3.—(1) On the date of vesting the vested lands shall by virtue of this Act become and be vested in the County Council in fee simple in possession without any deed or conveyance or other assurance subject to the contracts obligations and liabilities of the railway company and to all leases (if any) granted by the Company of Proprietors of the Swansea Canal Navigation or by the railway company (whether under express statutory powers or otherwise) subsisting on the date of vesting and affecting the vested lands and upon such vesting the railway company shall be released from all obligations and liabilities whatsoever imposed on them in relation to the vested portion of the canal by the Act 34 Geo. III. c. 109 or the Great Western Railway (Swansea Canal) Act 1872 or the Regulation of Railways Act 1873 and the said Acts shall cease to apply to the vested portion of the canal.

Vesting of
lands in
County
Council.

36 & 37 Vict
c. 48.

(2) The County Council shall on the date of vesting pay to the railway company the sum of ten pounds as the consideration for the vesting in the County Council of the vested lands.

4.—(1) On the day immediately following the date of vesting—

Extinguish-
ment of rights
of navigation
&c.

(a) all rights of navigation along and over and all rights of user of the vested portion of the canal; and

(b) all rights of way (whether public or private) along or over the vested portion of the canal or the tow-paths thereof other than a bridge;

shall cease and be extinguished.

(2) On the day immediately following the date of vesting the County Council shall be released from all obligations and liabilities whatsoever (whether statutory or contractual or howsoever otherwise arising) subsisting on the date of vesting and affecting the vested lands.

Power to
execute works
&c.

5. The County Council may in relation to the vested lands execute and do all or any of the following matters and things:—

- (a) They may fill up or raise or lower the bed of the vested portion of the canal;
- (b) They may exercise any powers vested in them as a highway authority and in particular (but without prejudice to the generality of the foregoing provisions of this paragraph) they may remove any bridge vested in them carrying a highway over the vested portion of the canal and for the purposes of this paragraph may make up and dedicate as part of the highway so much of the vested lands as they shall consider necessary or convenient;
- (c) They may remove alter or interfere with the towing-paths banks lay-byes basins wharves locks sluices culverts drains and other works forming part of the vested portion of the canal;
- (d) They may construct or erect and maintain such fences walls embankments and other structures erections and works as they may think fit for severing the vested portion of the canal from any adjoining lands or for preventing the flow or passage of water from or to the vested portion of the canal and make such provision as they may deem necessary or expedient (whether by the execution of works or otherwise) for preventing the flow or passage of water or any liquid or solid matter on to any lands forming part of the vested portion of the canal from any other lands;
- (e) They may remove alter divert or stop up any sewer or any drain connected therewith providing a proper substitute before interrupting the flow of sewage therein;
- (f) They may alter mains pipes wires and other works and apparatus for conveying or transmitting water gas or electricity.

Power to agree
as to drainage
of lands.

6. The County Council may make and carry into effect agreements with the railway company and with the owners lessees or occupiers of any lands adjoining or contiguous to the vested lands with reference to the draining of any lands forming part of or adjacent to the vested lands or for more effectually collecting diverting and conveying the streams watercourses and waters now flowing to upon or from the vested lands.

7.—(1) For the purpose of draining any of the vested lands the County Council may cause the water in on or flowing on to such lands to be temporarily discharged into any available surface water sewer river stream ditch or watercourse: Temporary discharge of water into streams &c.

Provided that any water so discharged shall so far as may be reasonably practicable be free from mud solid or offensive matter and other matter injurious to fish or spawn or spawning beds or food of fish.

(2) In the exercise of the power conferred by this section the County Council shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of such compensation to be settled in case of difference by a single arbitrator to be agreed upon between the parties or in default of such agreement appointed on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers Subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

(3) The powers of this section shall not be exercised so as to damage or affect injuriously the railways canals or works of any railway company.

8. For the protection of the railway company the following provisions shall unless otherwise agreed in writing between the railway company and the County Council apply and have effect:— For protection of railway company.

(1) In this section the expressions—

“ the canal ” means the canal as defined in this Act but excluding the vested portion of the canal and the severed portion of the canal as hereinafter defined;

“ the severed portion of the canal ” means the part of the canal between the feeder next hereinafter defined and the vested portion of the canal;

“ the feeder ” means the portion of the Abercrave feeder lying between the termination of the canal at Abercrave and the south-western end of the culvert of the County Council laid on the bed of the said Abercrave feeder;

“ the engineer ” means the chief engineer of the railway company;

“ the works ” means the culvert and overflow sluice and the manholes and other works in connection therewith constructed under the provisions of subsection (4) of this section:

- (2) From the date of vesting until the completion to the satisfaction of the engineer of the works the County Council shall except as is hereinafter provided so maintain the vested portion of the canal that the flow of water from the river Tawe through the feeder the severed portion of the canal and the vested portion of the canal to the canal shall not be in any way interrupted or diminished:
- (3) From the date of vesting the County Council shall forever so maintain the feeder and the severed portion of the canal that the flow of water from the river Tawe through the feeder and the severed portion of the canal to the vested portion of the canal shall not be in any way interrupted or diminished. For the purposes of this subsection the County Council may at any time and from time to time enter upon the land of the railway company:
- (4) (a) Before the County Council begin to fill up or raise or lower the bed of any part of the vested portion of the canal or begin any work affecting such portion under the powers conferred on them by section 5 (Power to execute works &c.) of this Act they shall give notice in writing to the railway company of their intention to begin such work;
- (b) If the engineer is of the opinion that the work referred to in the said notice would interrupt or diminish the flow of water from the river Tawe to the canal he shall within one month of receipt of such notice from the County Council give to the County Council notice in writing requiring them to construct (i) a culvert in the vested portion of the canal three feet in diameter or of such greater dimensions as the engineer may reasonably require from the south-western side of the Lock Bridge near Ynysbydafau Farm at Abercrave in the county of Brecknock to a point thirty yards north-east of the Lamb and Flag Bridge at Abercrave aforesaid together with all necessary manholes and other works in connection therewith and (ii) an overflow sluice in the severed portion of the canal at the entrance to the culvert situate about four chains north-east of the Lamb and Flag Bridge aforesaid (which culvert is hereinafter referred to as "the existing overflow culvert");
- (c) If the engineer gives the County Council notice as aforesaid the County Council shall not begin to construct or carry out the work referred to in their

notice to the railway company until the construction of the works has been completed to the satisfaction of the engineer:

- (5) The works shall be constructed by and at the expense of the County Council under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer and in accordance with plans sections and particulars to be submitted to and reasonably approved by the engineer before the County Council begin to execute the works:
- (6) The works shall be constructed and the works and the existing overflow culvert shall forever be maintained in such substantial repair and good order as not to cause any interruption to or diminution of the flow of water from the river Tawe to the canal except at such time or times and for such periods as may be agreed with the engineer and if any such interruption or diminution shall arise from the acts or operations of the County Council or by reason of the failure of the County Council to maintain the works or the existing overflow culvert or by any leakage or failure of the works or the existing overflow culvert the County Council shall forthwith at their own expense carry out all necessary work to remedy such interruption or diminution:
- (7) In the event of the County Council failing at any time to carry out their obligations under subsection (2) or subsection (3) or the last preceding subsection of this section to the reasonable satisfaction of the engineer the railway company may at any time and from time to time enter upon the land of the County Council and carry out all such works and make and do all such repairs as may be necessary and recover the expense thereof from the County Council:
- (8) As from the date of vesting the railway company shall be relieved of any liability whether statutory or otherwise in respect of the maintenance and renewal of the existing overflow culvert and of all bridges and culverts situated over or under any part of the vested portion of the canal:
- (9) The County Council shall be responsible for and shall save harmless and indemnify the railway company from and against all claims and liability in respect of any interruption to or diminution of the flow of water in the canal or in respect of any damage to property which may arise in consequence of or be in any way attributable to the execution construction

or maintenance of the works or the existing overflow culvert or of any other works of the County Council carried out on or affecting the vested portion of the canal the severed portion of the canal or the feeder or by reason of the failure of the works or the existing overflow culvert or any such other works or by reason of the failure of the County Council to discharge any of the obligations imposed upon them by this section:

(10) The County Council shall repay to the railway company all reasonable expenses incurred by them in examining and checking the plans of the County Council prepared in connection with the carrying out of the works authorised by this Act including the cost (if any) of supervising such works:

(11) Any difference arising between the railway company and the County Council respecting any of the matters referred to in this section shall be referred to and determined by a single arbitrator to be appointed (failing agreement) at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 or any statutory re-enactment or modification thereof shall apply to any such reference and determination.

Saving for
town and
country
planning.
7 & 8 Geo. 6.
c. 47.

9. The provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

Power to
borrow.

10.—(1) The County Council shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses referred to in section 11 (Costs of Act) of this Act and they shall pay off all moneys so borrowed within such period as they may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

11. The costs charges and expenses of and incidental to preparing applying for and obtaining this Act as taxed by the taxing officer of one of the Houses of Parliament shall be paid by the County Council out of the county fund or out of moneys to be borrowed under this Act. Costs of Act.

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9 & 10 GEO. 6.

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